

HOUSE No. 1140

The Commonwealth of Massachusetts

PRESENTED BY:

Daniel M. Donahue

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to remove barriers to patient care.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Daniel M. Donahue</i>	<i>16th Worcester</i>	<i>1/17/2025</i>

HOUSE No. 1140

By Representative Donahue of Worcester, a petition (accompanied by bill, House, No. 1140) of Daniel M. Donahue relative to diagnostic evaluation by an advanced practice registered nurse. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to remove barriers to patient care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 175 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 47UU the following section:-

3 Section 47VV. When any provision in this chapter requires a diagnostic evaluation,
4 medical necessity determination, certification, written order, prescription, or treatment
5 recommendation by an attending, treating or consulting physician as a condition of coverage or
6 reimbursement of health services, that requirement may be fulfilled by an advanced practice
7 registered nurse practicing under section 80B of chapter 112. Nothing in this section shall be
8 construed to expand the scope of practice of advanced practice registered nurses.

9 SECTION 2. Chapter 176A of the General Laws, as so appearing, is hereby amended by
10 inserting after section 8VV the following section:-

11 Section 8WW. When any provision in this chapter requires a diagnostic evaluation,
12 medical necessity determination, certification, written order, prescription, or treatment

13 recommendation by an attending, treating or consulting physician as a condition of coverage or
14 reimbursement of health services, that requirement may be fulfilled by an advanced practice
15 registered nurse practicing under section 80B of chapter 112. Nothing in this section shall be
16 construed to expand the scope of practice of advanced practice registered nurses.

17 SECTION 3. Chapter 176B of the General Laws, as so appearing, is hereby amended by
18 inserting after section 4VV the following section:-

19 Section 4WW. When any provision in this chapter requires a diagnostic evaluation,
20 medical necessity determination, certification, written order, prescription, or treatment
21 recommendation by an attending, treating or consulting physician as a condition of coverage or
22 reimbursement of health services, that requirement may be fulfilled by an advanced practice
23 registered nurse practicing under section 80B of chapter 112. Nothing in this section shall be
24 construed to expand the scope of practice of advanced practice registered nurses.

25 SECTION 4. Chapter 176G of the General Laws, as so appearing, is hereby amended by
26 inserting after section 4NN the following section:-

27 Section 4OO. When any provision in this chapter requires a diagnostic evaluation,
28 medical necessity determination, certification, written order, prescription, or treatment
29 recommendation by an attending, treating or consulting physician as a condition of coverage or
30 reimbursement of health services, that requirement may be fulfilled by an advanced practice
31 registered nurse practicing under section 80B of chapter 112. Nothing in this section shall be
32 construed to expand the scope of practice of advanced practice registered nurses.

33 SECTION 5. Subsection (a) of section 16 of chapter 176O of the General Laws, as so
34 appearing, is hereby amended by inserting after the word “physician”, in line 1, the following
35 words:- “or advanced practice registered nurse”.

36 SECTION 6. Said subsection (a) of section 16 of chapter 176O of the General Laws, as
37 so appearing, is hereby further amended by striking out, in line 9, the words “treating physician”
38 and inserting in place thereof the following words:- “treating provider”.

39 SECTION 7. Subsection (b) of section 16 of chapter 176O of the General Laws, as so
40 appearing, is hereby amended by inserting after the words “treating physician”, in line 11, the
41 following words:- “, treating advanced practice registered nurse”.